

**CHAPTER clxxiv.**

An Act to authorise the County of London Electric Supply Company Limited to purchase lands and construct generating stations and for other purposes. A.D. 1905.

[4th August 1905.]

WHEREAS the County of London Electric Supply Company Limited (herein-after called "the Company") are by various Provisional Orders authorised to supply electricity in various areas within the administrative county of London and are now supplying electricity under the provisions of those Orders :

And whereas the demand for electricity within the said areas has largely increased and is increasing and it is expedient that the Company may be authorised to erect and work stations for generating electricity upon the lands described in the First Part of the schedule to this Act and to acquire such lands or rights or interests therein and that the continuance and enlargement of the existing generating stations of the Company on the lands described in the Second Part of the said schedule be sanctioned :

And whereas it is expedient that the powers herein-after contained be conferred upon the Company :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

And whereas plans showing the lands which may be compulsorily taken or used under the powers of this Act and a book of reference to such plans containing the names of the owners or reputed owners and lessees or reputed lessees and of the occupiers of such lands were duly deposited with the clerk

A.D. 1905. — of the peace for the county of London and are herein-after respectively referred to as the deposited plans and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :--

Short title. **1.** This Act may be cited as the County of London Electric Supply Company's Act 1905.

Incorporation of Acts. **2.** The Lands Clauses Acts are except where expressly varied by this Act incorporated with and form part of this Act.

Interpretation. **3.** In this Act the several words and expressions to which meanings are assigned by the Acts incorporated with this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act and for the purposes of this Act in the provisions of any Act incorporated with or applied to the purposes of this Act—

The expression "the Company" means the County of London Electric Supply Company Limited ;

"The Company's Orders" means the Southwark Electric Lighting Order 1892 the County of London (North) Electric Lighting Order 1892 the Wandsworth Electric Lighting Order 1892 the St. Olave Electric Lighting Order 1895 the Camberwell Electric Lighting Order 1896 the St. Saviour's District Electric Lighting Order 1896 the County of London (Northern Extensions) Electric Lighting Order 1897 the Holborn and St. Giles Electric Lighting Order 1898 (No. 1) and the Battersea Electric Lighting Order 1900.

Power to take lands. **4.** The Company may enter upon take hold and use the lands delineated on the deposited plans and described in the deposited book of reference and in the First Part of the schedule to this Act annexed :

Provided that the lands in the metropolitan borough of Camberwell described in (A) of the schedule to this Act shall not be used for purposes other than those connected with the supply of electricity within the said metropolitan borough of Camberwell.

5. The Company may enter upon the road shown on the deposited plans and described in the deposited book of reference and included within the limits of lands to be acquired marked on the said plans and thereon numbered 2 in the parish of St. Giles Camberwell in the metropolitan borough of Camberwell in the county of London and may subject to the provisions of this Act and of the Electric Lighting Act 1882 and the Camberwell Electric Lighting Order 1896 break up and open the site and soil of the said road and may in under over or along the same lay down erect maintain and from time to time use and repair renew alter inspect examine and test electric lines with all necessary cables pipes tubes boxes and posts and apparatus and the Company shall have access at all times into through and over such road with or without horses carts and vehicles for the purposes aforesaid and for the purpose of obtaining access to the lands (A) described in the First Part of the schedule to this Act annexed :

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Easements
over road.

Provided that the Company shall not permanently stop up such road or interfere with the passage of traffic therein further or otherwise than is necessary for the purposes aforesaid nor without the consent of the owners of such road acquire any greater right or interest in such road than the right of laying down erecting maintaining using repairing renewing and altering electric lines within the said limits and examining testing regulating measuring and controlling the supply or transmission of electricity through the same and examining the state and condition thereof including the right of access to and over the said road for the purposes herein-before mentioned or any of them.

6. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company may after ten days' notice to the owners lessees and occupiers of the lands in question apply to a metropolitan police magistrate for the correction thereof and if it appear to such magistrate that the omission mis-statement or wrong description arose from mistake he shall certify the same accordingly and shall in his certificate state the particulars of any such omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of London and shall be kept by such clerk

Errors and
omissions in
plans &c. to
be corrected
by magis-
trate who
shall certify
same.

A.D. 1905. of the peace along with the other documents to which the same relates and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Company may take the lands and execute the works in accordance with such certificate.

Owners may
be required
to sell parts
only of cer-
tain pro-
perty.

7. And whereas it may happen that portions only of the property shown or partly shown on the deposited plans and thereon numbered 1 in the parish of St. Giles Camberwell will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said property without material detriment thereto Therefore the following provisions shall have effect :—

- (1) The owner of and persons interested in the said property or each or any of them are herein-after included in the term "the owner" :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of the said property the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the said property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :

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—

- (4) If the tribunal determine that the portion of the said property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the said property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the said property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the said property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

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The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that the said property or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any portion of the said property.

Power to
take ease-
ments &c. by
agreement.

8. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Period for
compulsory
purchase of
lands.

9. The powers by this Act conferred upon the Company for the compulsory purchase of lands shall cease after the expiration of five years after the passing of this Act.

Generating
stations.

10. Subject to the provisions of this Act the Company may upon the lands described in the Second Part of the schedule to this Act annexed continue maintain alter improve enlarge and extend renew work and use or discontinue their existing stations for generating transforming transmitting and distributing electrical energy with all necessary alternators dynamos motors batteries accumulators plant engines machinery works and conveniences for that purpose and may upon such lands and also upon the lands described in the First Part of the said schedule to this Act or any part thereof respectively erect make and maintain alter improve enlarge extend renew work and use or discontinue stations for generating transforming transmitting and distributing electrical energy with all necessary works as aforesaid and may upon such lands generate transform transmit and distribute such energy for the purpose of

supply within their area of supply as for the time being existing and for giving any supply which they are for the time being authorised to give under the powers of this Act or otherwise. A.D. 1905.

11. The Company shall not except with the approval of the Commissioners of Works erect any generating station or take a supply of energy from any generating station unless the site for such generating station is specified in an Act of Parliament or in an Order confirmed by or having the effect of an Act of Parliament Provided always that this section shall not apply to any sub-station for the transformation and distribution of electrical power Provided also that this section shall not apply to any station which may be in existence and which shall not be extended beyond the limits of the site occupied by the buildings of such station at the time of the passing of this Act. As to
generating
stations on
sites not
scheduled.

12. The Company may abstract and utilise water from the City Road basin of the Regent's Canal for condensing or other purposes of their undertaking provided that all water so utilised and not consumed shall be returned to the said canal and the Company shall make to the Regent's Canal and Dock Company in respect of the user of the waters of the Regent's Canal for the purposes aforesaid such compensation as failing agreement may be settled by an arbitrator to be appointed on the application of either party in difference by the Board of Trade. Power to
abstract
water.

13. The Company on the one hand and the Regent's Canal and Dock Company on the other hand may from time to time enter into and carry into effect agreements with respect to the abstraction of water from the City Road basin of the Regent's Canal as aforesaid and the laying down maintenance and user of pipes pumps and other apparatus for that purpose and the execution and maintenance of such other works as may be necessary in that behalf. Agreements
with Re-
gent's Canal
and Dock
Company.

14. Notwithstanding anything in this Act to the contrary the Company shall not without the consent in writing under the seal of the Regent's Canal and Dock Company (herein-after called "the canal company") take or acquire under the powers of this Act any estate or interest of the canal company in property in the parish of St. Luke in the county of London nor shall the Company abstract or utilise water from the City Road For protec-
tion of Re-
gent's Canal
and Dock
Company.

A.D. 1905. — basin of the Regent's Canal or from any part of the Regent's Canal except in accordance with the terms of any agreement for the time being existing between the Company and the canal company.

For protec-
tion of Lon-
don and
South West-
ern Railway
Company.

15. For the protection of the London and South Western Railway Company (in this section referred to as "the railway company") the following provisions shall unless otherwise agreed apply and have effect:—

- (1) In the event of the Company acquiring the land in the parish of Wandsworth numbered 2 on the deposited plans they shall not erect any building on a strip of land 25 feet wide abutting and on the south side of the viaduct of the railway company except after notice given to that company of the Company's intention so to do and in the event of the railway company desiring to acquire portions of such strip for the purpose of extending the existing viaduct and signifying such intention within one month from the date of the notice aforesaid the Company shall convey to them the portions of such strip necessary for the construction thereon of extensions of the existing piers of the viaduct together with the right to go upon any portion of such strip within a distance of 6 feet around such extensions for repairs renewal or otherwise dealing with such extensions and the right of constructing and maintaining the arches of the viaduct extension over the land intervening between the several portions of land so acquired at a price to be agreed or in the event of disagreement to be determined by arbitration under and in accordance with the provisions of the Lands Clauses Acts with respect to the taking of lands otherwise than by agreement. Provided that in arriving at the amount to be paid by the railway company in respect of the conveyance of such land regard shall be had to the fact that portion of the land retained by the Company between the extensions of the piers and underneath the proposed extension of the viaduct may not be available to the Company for building purposes.

- (2) Notwithstanding anything in this Act contained or shown on the deposited plans the Company shall not acquire the piers of the existing viaduct belonging to the railway company and forming portion of the property numbered in the parish of Wandsworth 2 on the deposited plans or the sites of such piers nor build upon or otherwise interfere with the right and liberty of the railway company to go upon any land within a distance of six feet around such piers for inspecting repairing renewing or otherwise dealing with the said piers. A.D. 1905.

16. Nothing in this Act contained shall take away lessen alter or prejudice any of the rights remedies powers authorities privileges exemptions and benefits vested in or granted or reserved to or now enjoyed or exercised by the Metropolitan Water Board with respect to the River Thames and the properties in the possession of or occupied or used by the Board adjoining or fronting on the River Thames and situate at or near the Causeway Wandsworth. General provisions for protection of Metropolitan Water Board.

17. For the protection of the Wandsworth Borough Council (in this section called "the council") the following provisions shall unless otherwise agreed between the Company and the council have effect (that is to say):— For protection of Wandsworth Borough Council.

- (1) Nothing in this Act contained or shown upon the deposited plans shall authorise the Company to take hold or use any land abutting upon Bell Lane Creek which shall extend beyond the existing camp sheathing shown upon the plan which has been signed by Charles Pratt Sparks on behalf of the Company and Peter Dodd on behalf of the council and in the event of a barge bed being constructed by the Company in Bell Lane Creek the Company shall not moor two or more barges abreast in the said creek or in any way cause an obstruction to the free navigation thereof:
- (2) The Company shall at the reasonable request of the council or their surveyor raise the sluice situate on the south side of their land (E) (2) described in Part II. of the schedule to this Act (which sluice connects the Bell Lane Creek with the River Wandle)

A.D. 1905.

at low water so as to permit as far as the Company are able a sufficient head of water to flow down the creek to scour the bed thereof provided that the Company shall not be required to raise the said sluice if by so doing they will interfere with the requirements of the Company or the rights of riparian owners.

Application
of London
Building
Acts and
observance
of general
line and
prescribed
distance.

18. The provisions of the London Building Act 1894 and the London Building Act 1894 (Amendment) Act 1898 shall subject to any exemptions therein contained in favour of companies having statutory powers for the supply of electricity apply to the erection construction or execution by the Company of any building structure or works on any lands mentioned in the schedule to this Act.

Restriction
on discharge
of condens-
ing water
into sewers.

19. The Company shall not except with the consent of the London County Council or in case of emergency discharge any condensing water or water used for condensing purposes from any buildings or works of the Company situate on the lands described in the schedule to this Act into any of the sewers of the London County Council or into any pipe conduit or drain directly or indirectly communicating therewith Provided always that the River Wandle shall not be deemed to be a sewer within the meaning of this section.

For protec-
tion of S. H.
Beddington.

20. For the protection of Samuel Henry Beddington (in this section called "the owner") the following provisions shall unless otherwise agreed between the Company and the owner have effect (that is to say):—

(1) If the Company give notice to treat in respect of any portion of the lands (A) described in the schedule to this Act they shall if so required by the owner by notice in writing served upon the Company within one month from the receipt of such notice to treat purchase the whole of the premises known as 124 Hill Street including the whole of the garden and premises in rear and to the south thereof:

(2) Notwithstanding anything in this Act it shall not be lawful for the Company to generate electricity on the said lands (A) above referred to or on any portion thereof and nothing in this Act shall exonerate the Company from any indictment action or other pro-

ceedings for nuisance or injury in the event of any nuisance or injury being caused by them upon the said lands : A.D. 1905.

- (3) The powers of the Company for the compulsory purchase of any interest of the owner in the lands aforesaid shall not be exercised after the expiration of three years from the passing of this Act.

21.—(1) The Company may at any point or points within any area of supply for the time being of the Company supply electrical energy for the purposes of haulage or traction and for lighting vehicles or boats drawn by such haulage or traction to any company body or person owning or working any railway tramway tramroad canal or navigation situate within or partly within such area of supply and notwithstanding that such energy is to be used for such purposes in part outside such area of supply :

Power to supply electricity to certain bodies and companies.

Provided that nothing in this section shall authorise the Company to supply electrical energy for the purpose of working any railway unless the company body or person owning or working such railway is authorised by Act of Parliament or by an Order confirmed by or having the effect of an Act of Parliament to work such railway by electrical power.

(2) The company body or person receiving such supply shall not use the electrical energy so supplied for other than the aforesaid purposes.

(3) Such company body or person shall not use the electrical energy so supplied in such manner as to cause or be likely to cause any interference with telegraphic communication by means of any telegraphs belonging to or used by the Postmaster-General but this subsection shall not apply to any such company body or person who are or is authorised to use electrical energy for such haulage or traction or lighting by Act of Parliament or by an Order confirmed by or having the effect of an Act of Parliament containing provisions for the protection of such telegraphs.

(4) Any expenditure on electric lines or works to be laid down by the Company in the metropolitan borough of Camberwell for the purposes of this section shall not be charged against the council of that borough in the event of their purchasing the undertaking authorised by the Camberwell Electric Lighting

A.D. 1905. — Order 1896 under subsection (2) or subsection (3) of section 60 of that Order.

Supply of
electricity to
premises
having sepa-
rate supply.

22. Notwithstanding anything in the Electric Lighting Acts 1882 and 1888 or in any of the Company's Orders a person shall not be entitled to demand or to continue to receive from the Company a supply of electricity for any premises having a separate supply unless he has agreed with the Company to pay to them such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by them in order to meet the possible maximum demand for those premises. The sum to be so paid shall be determined in default of agreement by arbitration under the Electric Lighting Act 1882.

Accounts.

23. The Company may make up one annual statement of account in respect of all the undertakings authorised by any Orders relating to the metropolitan borough of Holborn and one annual statement of account in respect of all the undertakings authorised by any Orders relating to the metropolitan borough of Finsbury and conferring powers upon the Company for the supply of electricity in those boroughs respectively and it shall not be necessary for the Company to make up a separate statement of account in respect of each such undertaking. Such annual statements shall be made and filed up as provided by section 9 of the Electric Lighting Act 1882 and the provisions of that section and of the sections relating to audits of accounts of any such Order shall extend and apply to each of such annual statements of account.

For protec-
tion of Com-
missioners
of Works.

24. Nothing in this Act or in any of the Company's Orders shall authorise the Company to open or break up or in any way to interfere with any street or any water or gas main or pipe drain or culvert which is vested in or is under the control or management of the Commissioners of Works or which is maintained paved repaired lighted or watered by them or to interfere with any rights privileges or powers of whatsoever nature vested in or exerciseable by those commissioners without their consent in writing and subject to such terms and conditions as those commissioners may think fit.

Copy of Act
to be regis-
tered.

25. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered

within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily. A.D. 1905.

There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

26. All costs charges and expenses of and incident to the preparation obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1905.

The SCHEDULE referred to in the foregoing Act.

PART I.

(A) In the parish of St. Giles Camberwell in the metropolitan borough of Camberwell and county of London the portion of the garden and premises in rear of the property known as No. 124 Hill Street which lies to the westward of an imaginary line drawn across such garden and premises parallel or nearly parallel to and at a distance of 22 yards measured in a westerly direction from Hill Street.

(B) In the parish of Wandsworth in the metropolitan borough of Wandsworth in the county of London the lands bounded on the south by an imaginary line drawn from the weir between Bell Lane Creek and the River Wandle in a due easterly direction to a point on the west bank of the canal forming part of the works belonging to Messrs. MacMurray's Royal Paper Mills Company Limited (herein-after referred to as "MacMurray's Canal") distant 101 yards or thereabouts southward of the viaduct of the London and South Western Railway Company which crosses that canal and on the east in part by an imaginary line drawn northward from such last-mentioned point and in other part by the said canal and on the north by the generating station and premises of the Company on the north side of the said viaduct and on the west by the River Wandle (including the arches of the aforesaid viaduct).

(C) In the parish of St. Luke Middlesex in the metropolitan borough of Finsbury and county of London lands abutting upon the east side of Graham Street between points respectively situate 97 yards and 111 yards from its junction with City Road which lands measure throughout 14 yards from north-west to south-east and are bounded on the north-east by the City Road basin of the Regent's Canal.

PART II.

(D) In the parish of St. Luke Middlesex in the metropolitan borough of Finsbury—

The City Road generating station of the Company and the lands buildings and premises lying between that station and the lands (C) above described.

(E) In the parish of Wandsworth in the metropolitan borough of Wandsworth—

- (1) The lands buildings and premises belonging to the Company bounded on the north and west and south-west by the roadway leading from Wandsworth Plain to the Southwark and Vauxhall Waterworks of the Metropolitan Water Board and known as

the Causeway and bounded on the east in part by MacMurray's Canal and in part by the easternmost bank of the River Wandle and on the south in part by the aforesaid viaduct and in part by the imaginary line herein-before described as forming the southernmost boundary of the lands (B) herein-before described :
and

A.D. 1905.

- (2) The lands buildings and premises belonging to the Company on the west and north-west of the Causeway aforesaid bounded on the south by an imaginary line drawn parallel to and at a distance of 21 yards northward of the aforesaid viaduct and on the west by Bell Lane Creek and on the north by the River Wandle and on the north-east by the aforesaid waterworks.

(F) In the parish of Streatham in the metropolitan borough of Wandsworth certain lands and buildings situate at the junction of Lynn Street with Yukon Road bounded on the south by Yukon Road and on the east by Lynn Street on the north by a line drawn parallel or nearly parallel to and at a distance of 17 yards northward of Yukon Road and on the west by a line drawn parallel or nearly parallel to and at a distance of 23 yards west of Lynn Street or thereabouts.

(G) In the parish of St. George the Martyr Southwark in the metropolitan borough of Southwark the buildings and premises in Vine Yard bounded on the north-east south-east and south-west by the roadway of Vine Yard and on the north-west by the warehouses and premises in the occupation of Messrs. Peet and Son.

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